

Court No. - 21

Case :- WRIT - C No. - 36614 of 2022

Petitioner :- Vinod Kumar Varshney

Respondent :- The State Of U P And 4 Others

Counsel for Petitioner :- Shanti Dhar Dwivedi

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

The instant petition has been filed praying for quashing of demand notices dated 6.5.2022 and 11.5.2022, Annexure Nos. 5 and 6 respectively.

Annexure No. 5 is notice dated 6.5.2022 proposing assessment of a sum of Rs. 5,07,494.00 for theft of electricity and inviting objections within fifteen days. The case of the petitioner is that he has already filed objections against the same.

Sri Pranjal Mehrotra, learned counsel appearing for the Electricity Department states that the final assessment order has yet not been passed and that the objections filed by the petitioner will be considered while passing the final assessment order. Therefore, no further direction is required to be made in relation to notice dated 6.5.2022.

The demand notice dated 11.5.2022 is in respect of arrears of electricity dues to the tune of Rs. 1,44,758.56. In case the petitioner is disputing the amount being demanded as electricity dues, he has remedy of filing objections before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and therefore, no direction is required to be made in relation to the said notice as well.

The writ petition stands disposed of with the above liberty.

Order Date :- 5.1.2023

VMA

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)